

VENDOR SERVICE AGREEMENT

This Vendor Service Agreement ("Agreement") is entered into as of January 1, 2025, between ABC Technologies Pvt. Ltd. ("Client") and XYZ Solutions Pvt. Ltd. ("Vendor").

1. Scope of Services

Vendor shall provide software development and IT consulting services as requested by Client from time to time. Client may modify the scope at any time without notice.

2. Payment Terms

Client shall pay Vendor within 90 days of invoice receipt. Client reserves the right to withhold payment indefinitely if it determines, in its sole discretion, that services were unsatisfactory. No interest shall accrue on late payments.

3. Intellectual Property

All work product, inventions, code, designs, and deliverables created by Vendor shall become the exclusive property of Client immediately upon creation. Vendor waives all moral rights to such work product permanently and irrevocably.

4. Liability

Vendor's total liability under this Agreement shall not exceed Rs. 500 regardless of the nature or severity of the claim. Client shall face no liability whatsoever for any damages caused to Vendor.

5. Termination

Client may terminate this Agreement at any time without notice and without cause. Vendor may not terminate this Agreement for any reason during the first 24 months. Upon termination, Vendor forfeits all unpaid invoices.

6. Confidentiality

Vendor shall keep all Client information strictly confidential for a period of lifetime. This obligation survives termination of this Agreement permanently.

7. Governing Law

This Agreement shall be governed by the laws of the State of Delaware, USA. All disputes shall be resolved exclusively in courts located in Delaware, USA.

8. Indemnification

Vendor shall indemnify, defend, and hold harmless Client from any and all claims, damages, losses, and expenses, including attorneys fees, arising from Vendors performance of services, whether or not caused by Clients negligence.

9. Force Majeure

Force majeure shall not apply to payment obligations. Client is not required to pay Vendor even if Client is unable to receive services due to circumstances beyond Vendors control.

10. Non-Compete

Vendor shall not work with any company in any industry anywhere in the world for a period of 5 years after termination of this Agreement.